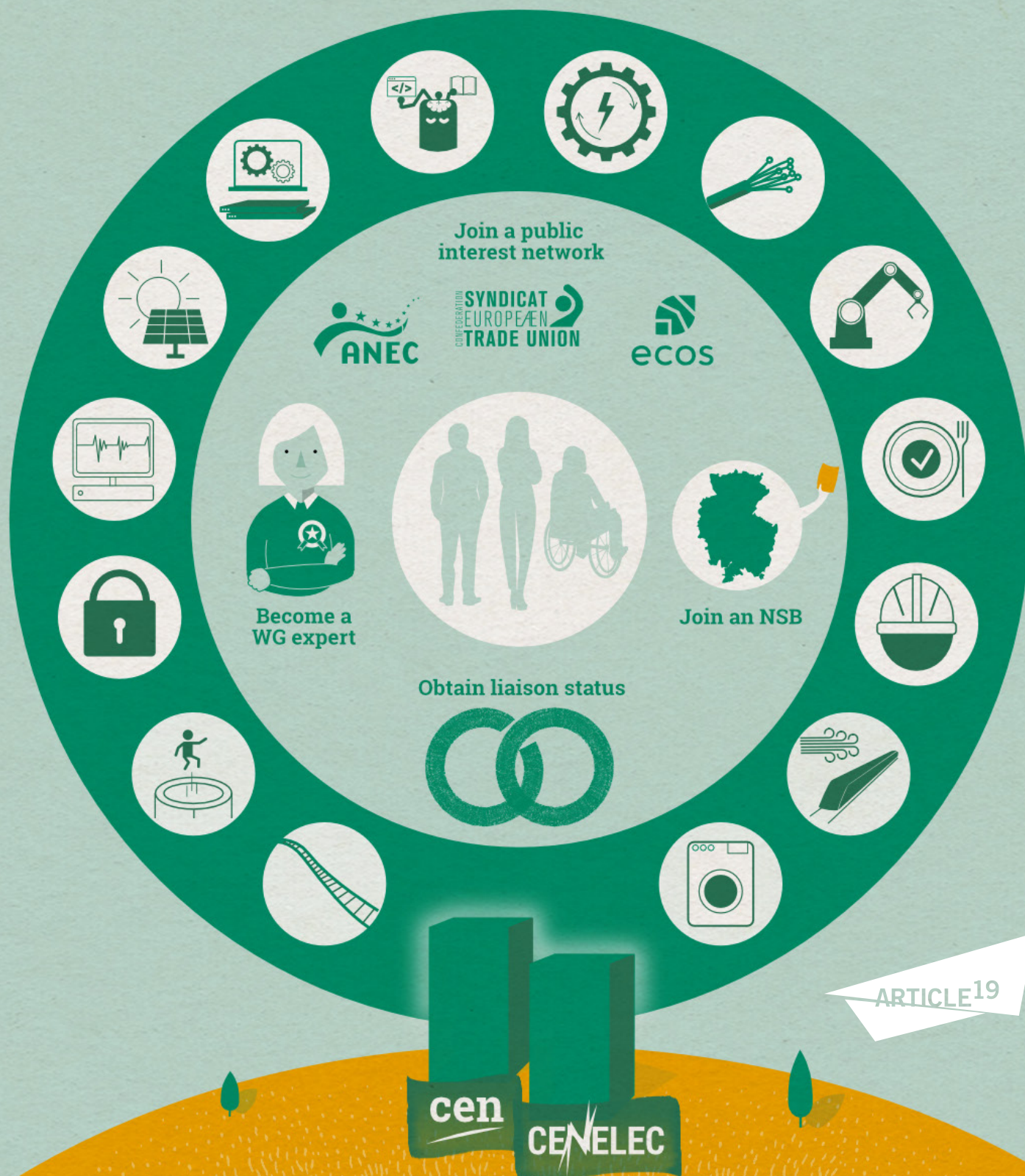


Navigating industry capture

A guide to influencing CEN/CENELEC





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Abbreviations

AI	artificial intelligence
ANEC	Association for the Coordination of Consumer Representation in Standardisation
BSI	British Standards Institute
CEN	Comité Européen de Normalisation
CENELEC	Comité Européen de Normalisation Électrotechnique
ECOS	Environmental Citizens' Organisation in Standardization
ETUC	European Trade Union Confederation
NSB	National Standards Body
SDO	standards developing organisations

Overview

What looks like ‘technical paperwork’ is, in practice, where Europe’s artificial intelligence (AI) rules are written. The standards produced by the Comité Européen de Normalisation (CEN) and the Comité Européen de Normalisation Électrotechnique (CENELEC) translate high-level EU laws into the concrete requirements companies must meet. These standards shape not only market access, but also how human rights protections are implemented in AI systems.

CEN and CENELEC are two distinct standards developing organisations (SDOs) officially recognised as Europe’s standardisation bodies. They develop standards and technical reports across various sectors, including AI. Because these standards underpin compliance with European regulation, they function as a form of soft-legislation and are essential for human rights protections in AI systems and the effectiveness of Europe’s AI framework.

Yet, CEN/CENELEC’s structural barriers, especially limited transparency and openness, systematically disadvantage stakeholders outside the private sector. Opaque structures and processes make it difficult for civil society to participate effectively and sustainably while standards are being developed. Without meaningful civil society engagement, we cannot adequately address the human rights impacts of standards applied to automated decision-making technologies like AI.

To mitigate industry capture, this guide supports civil society actors to influence technical standards development. It maps the main pathways for engagement in CEN/CENELEC and helps individuals and organisations navigate these complex processes.

What is CEN/CENELEC?

CEN/CENELEC develop standards both individually (within their respective remits) as well as jointly across a wide range of technical areas, from optical fibre cables and energy management to IT service management and AI. This includes [AI Concepts and Terminology \(EN ISO/IEC 22989:2023\)](#) and [Framework for AI Systems Using Machine Learning \(EN ISO/IEC 23053:2023\)](#).

CEN develops standards across many sectors including consumer products and appliances as well as occupational health and safety. Examples include [Safety of toys – Trampolines for domestic use \(EN 71-14:2018\)](#) or a broader series of specifications such as [Railway applications – Aerodynamics standard \(EN 14067\)](#).

CENELEC focuses specifically on the electrotechnical sector. Its standards range from general safety requirements such as the [The Safety of Household and Similar Electrical Appliances \(EN 60335\)](#) to specialised domains like [Railway applications: specification and demonstration of Reliability, Availability, Maintainability and Safety \(RAMS\) – Generic RAMS process \(EN 50126\)](#).

Why participate in CEN/CENELEC?

Standards shape regulation, markets, and tech dependency

CEN/CENELEC may sound like an obscure organisation developing standards, but its impact has wide-ranging implications from regulatory frameworks, markets and competition to technology dependency.

Standards are the main route to achieving compliance with EU law

As Europe's official SDOs, CEN/CENELEC have a mandate to develop 'harmonised standards' that support European regulations and legislation. When the European Commission issues a standardisation request to CEN/CENELEC, the resulting standards provide a pathway for companies to demonstrate legal compliance with EU regulations.

Technical standards function as shadow legislation

This legal significance transforms technical standardisation from a purely commercial activity into a form of shadow legislation. The experts writing these standards are effectively determining how fundamental rights protections will be implemented across AI systems deployed throughout the EU and, given the global influence of European standards, potentially worldwide.

Standards decide winners and losers in competitive markets

Standards shape markets by influencing which technologies succeed and which approaches become dominant. Companies invest substantial resources in standardisation not merely to ensure compliance, but to influence the competition landscape in their favour. By embedding their preferred technical approaches into widely adopted standards, companies can gain significant commercial advantages.

For AI standards, core architectural choices can shape market outcomes

This dynamic is particularly pronounced in AI, where fundamental architectural decisions about data formats, evaluation metrics, risk assessment procedures, and system interfaces can shape market outcomes.

Influence at CEN/CENELEC determines access to the world's largest market

Gaining an edge in CEN/CENELEC is an especially valuable prize because the outcomes will determine market access requirements for the world's largest single market and second-largest consumer market. Companies that influence these standards can potentially create barriers for competitors whilst ensuring their own approaches meet regulatory requirements.

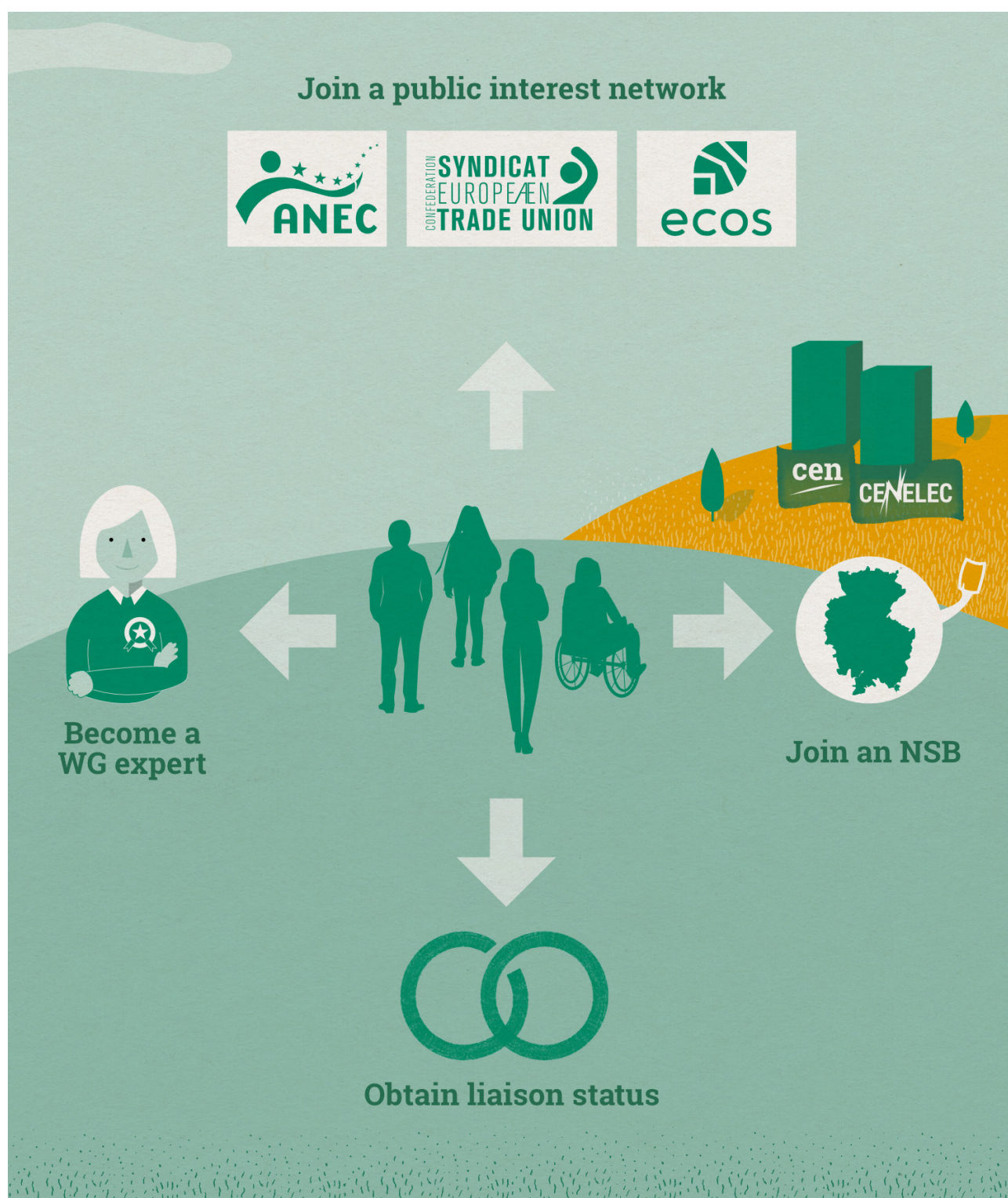
Standards create long-term lock-in that can be hard to reverse

Technical standards create path dependence effects that can shape particular technological approaches for decades. Once standards become widely adopted, the cost of switching to an alternative approach (even if superior from a technical or social perspective) becomes economically impractical.

For AI tech development, current risk metrics may be too narrow, and may miss real-world harms

The choices made in current AI standardisation will therefore influence technological development trajectories well beyond the immediate regulatory context. Standards that emphasise particular evaluation metrics will encourage AI developers to optimise for those measures, potentially at the expense of other important considerations. For instance, a risk mitigation standard that only considers threats to be potential harms to an AI system or the company (e.g. cybersecurity risks) would completely ignore threats that could harm users who interact with the AI system (e.g. risks to fundamental rights of users such as risks to discrimination and privacy) and would not mitigate against those threats.

How to participate in CEN/CENELEC: Four pathways



Participate through CEN/CENELEC's public interest networks

Civil society can participate through a network that is officially recognised as CEN/CENELEC's partner organisation. This is the easiest form of engagement for civil society, as organisations do not need to directly apply as an accredited organisation. However, civil society's influence to shape the outcome of technical standardisation is indirect and limited, as it relies heavily on the priorities and discretion of the recognised partners rather than directly intervening in technical standardisation. In addition to not having any voting rights as experts to the third-party committee, the partner organisation may choose not to submit an organisation's comments.

There are three partner organisations that have official status as liaison bodies: the European [Association for the Coordination of Consumer Representation in Standardisation](#) (ANEC) that represents consumer rights; the [European Trade Union Confederation](#) (ETUC) that represents workers and trade unions; and the European [Environmental Coalition on Standards](#) (ECOS) that represents environmental interests.

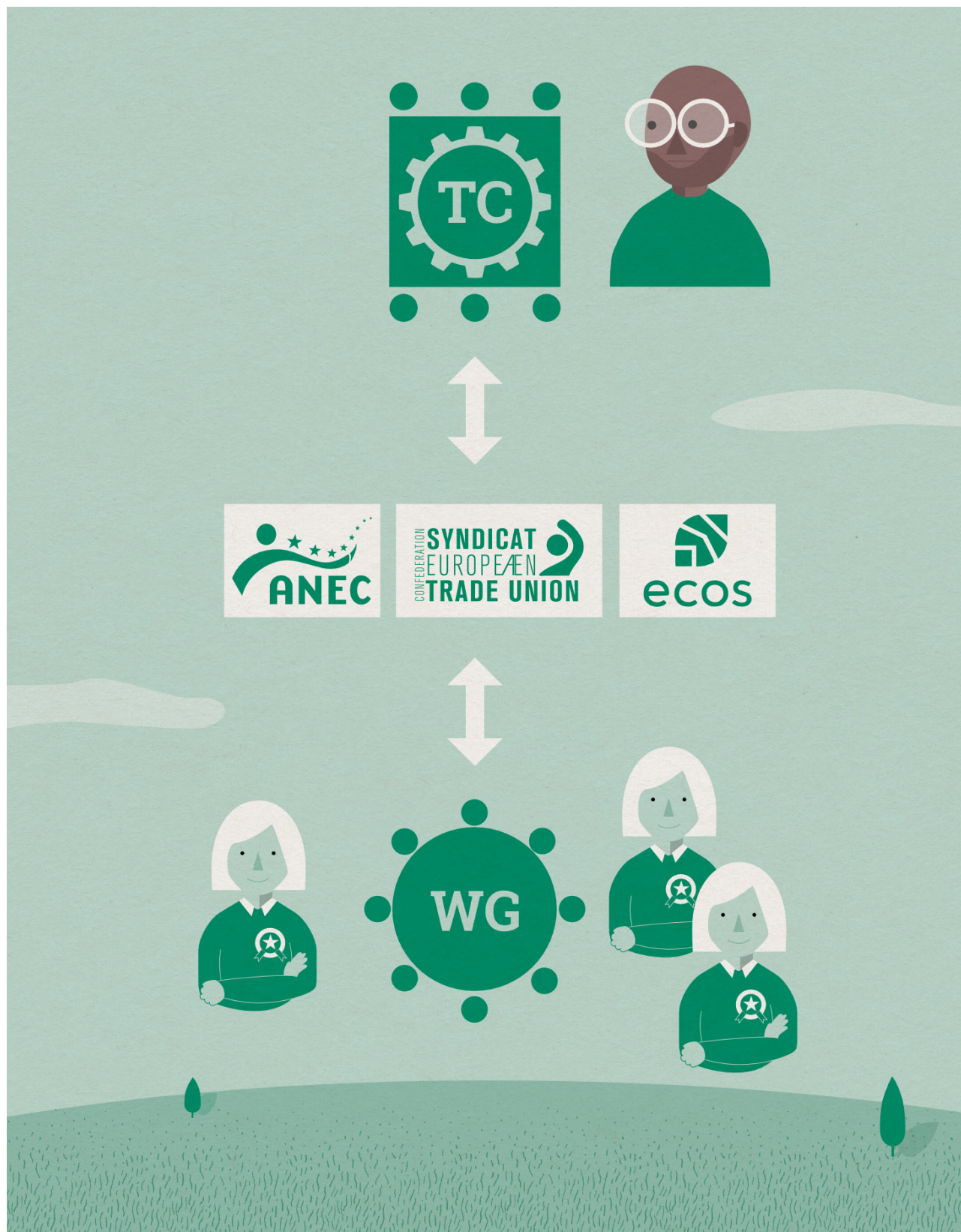
These three organisations can join any CEN/CENELEC Technical Body, including Technical Committees, and Working Groups without having to apply to be part of a specific committee or working group. ANEC, ETUC, and ECOS can nominate one observer to a [Technical Committee](#) and three expert advisors to a [Working Group](#) from their respective networks.

[Standard drafts](#) are shared with expert advisers. These advisers can submit suggestions to their respective organisations. ANEC, ETUC, and ECOS will then collate all the comments from their broader network of experts and share these suggestions with CEN/CENELEC (if they choose to do so).

Civil society organisations can be nominated by one of the three organisations to join a Technical Committee or a Working Group, subject to the specific nomination requirements of the organisation. Alternatively, they can send a comment or submission during the call for suggestions depending on their knowledge and capacity.

Find out more
information on
[partner
organisations](#)

Partner organisations can participate through Technical Committees (TC) or Working Groups (WG).



Join a National Standards Body

Civil society can also participate in CEN/CENELEC by joining a National Standards Body (NSB). This is one of the more difficult forms of engagement for civil society organisations, as the decision-making 'consensus' process (explained below) is contentious, but it is also very influential because it is the only method through which members can vote on a standard. Participation at this level ensures that civil society can advocate for standards that are rights-respecting and block harmful standards from passing.

CEN/CENELEC comprises 34 National Members. These National Members usually represent the NSB of the 27 EU countries, European Free Trade Association (Iceland, Norway, and Switzerland), UK, the Republic of North Macedonia, Serbia, and Türkiye. There is only one National Member per country.

NSB's are the most powerful stakeholder in CEN/CENELEC processes. They can directly submit votes and make draft suggestions to CEN/CENELEC, determining the outcome of technical standardisation at CEN/CENELEC. Each National Member has a single vote on a standard and can vote to 'agree', 'disagree', or 'abstain' from a standard.

Despite each National Member having a single vote when deciding on a standard, different NSBs have different levels of influence at CEN/CENELEC. Bigger NSBs like the British and German NSBs, respectively known as the British Standards Institute (BSI) and Deutsches Institut für Normung (DIN), have a greater influence over the standards development process, as representatives from these NSBs hold various influential roles, including Working Group convenors or editors of key standards.

Each NSB has a 'mirror committee' aligned with a specific Technical Committee at CEN/CENELEC. These mirror committees examine and deliberate on the standards developed by their corresponding Technical Committee. Once a national consensus is reached, the mirror committee directly participates in the respective CEN/CENELEC committee.

Given that decisions at this level shape the final text of European standards, participation here is crucial for ensuring that human rights and public interest concerns are not sidelined. Civil society can engage at the national level by joining an NSB, and should consider factors such as its relationship with the NSB, the influence of the NSB, membership fees required to join, and ease of travel to attend in-person meetings which may be conducted in local languages.

**Find more
information on
[CEN/CENELEC's
34 National
Members](#)**

Each NSB has a single vote – but bigger NSBs have greater influence.



Become a Working Group expert

Civil society can be at the forefront of the consensus building process by becoming a Working Group expert. Organisations can become editors of a draft standard and can contribute to drafting the text, deciding what information should be included or excluded. They can also directly influence deliberations, as Working Group experts are responsible for collating inputs from NSBs and incorporating them into the standard. This gives them power in deciding between contending comments and also those that can be disregarded for valid reasons. Not only can civil society directly shape the outcome of these processes, organisations can also gain first-hand industry insight and understand how companies are approaching the development of certain technologies. This can be used to shape future advocacy tactics and approaches.

Working Group experts directly participate in CEN/CENELEC's standards development process. Depending on the level of expertise, experts play various roles within the Working Group, from being a regular participant in the Working Group or editing standards, to becoming a Working Group convenor.

For the most part, experts support the drafting of Working Group standards. They are nominated by each NSB's mirror committee for a specific Working Group and are required to regularly attend meetings, usually held every other week, to maintain their expert status. They partake in submitting comments and inputs while also collating comments from their respective NSB to ensure that the comments are reflected in the draft standards.

Experts can act as editors in the standards development process, taking responsibility for the initial draft of the standard. Editors are responsible for reviewing all comments and inputs submitted by NSBs and partner organisations and editing the drafts accordingly. They also dictate the direction of the draft if there are contending comments from different NSBs. Editors can decide which of the contending comments to incorporate or how to marry the contending viewpoints into the draft.

Experts can also take on the role as Working Group convenors, acting as chair of the Working Group and convening meetings. They are ultimately responsible for the workings within a Working Group. As part of their role, they can nominate editors (if they are not serving as editors themselves), submit interim draft standards to the Technical Committee overseeing the Working Group during the drafting process, and handle other operational matters of the Working Group.

Individuals representing civil society can become Working Group experts if nominated by an NSB. The process of nomination varies by NSB. In certain NSBs, the mirror committee's manager can approve a nomination, while in others, approval requires consensus from all NSB members for a person to become a Working Group expert.

Becoming a Working Group expert is a long process. Civil society may initially struggle to build relationships with an NSB because of stakeholder dynamics that are often heavily skewed towards industry actors and unclear mechanisms for civil society participation. In addition, it is more time intensive than other pathways. However, Working Group expert-level participation is the most influential method of participation as civil society can shape standards from the ground up and ensure public interest values are embedded at the earliest stage of standardisation.

**Find more
information on
[Working
Group experts](#)**

Working Group (WG) experts directly participate in CEN/CENELEC's standards development process.



Obtain liaison status

Civil society can participate as a liaison organisation to CEN/CENELEC. This means that civil society does not have to directly engage through an NSB and can freely take positions rather than be bound to an NSB's position. In addition, civil society can bypass some of the restrictions put on NSB members, such as an attendance cap within the national delegation to technical plenaries. However, liaison organisations cannot propose new work items, participate in the drafting process of technical standards, or have voting rights to pass or block a standard. Obtaining liaison status can involve high membership fees and a complex registration process.

CEN/CENELEC is a membership organisation. As such, participation requires engagement through a national member (usually an NSB) or an accredited organisation. Depending on certain eligibility requirements, civil society can apply for liaison status with CEN/CENELEC. Those granted this status can request participation in a specific Technical Committee, allowing them to access working documents and take part directly in technical meetings.

Liaison organisations can also access and comment on drafts during finalisation. They do not have to participate in the consensus process in an NSB in order to submit their comments. Rather, their comments are directly submitted to Working Group experts assigned to review and address comments. Organisations may also propose technical documents. In addition to providing input and comments into draft standards, liaison organisations can suggest new areas of future standards development.

Civil society organisations can apply for liaison status by submitting an application, demonstrating expertise in a relevant field, and paying an annual fee for each CEN/CENELEC committee they are part of.

**Find more
information on
[how to become
a liaison
organisation at
CEN/CENELEC](#)**

Liaison organisations can take part in specific Technical Committees.



Four tips to start your engagement

Once you have identified the most suitable pathway for engagement in CEN/CENELEC, consider these four practical tips to participate effectively. Applying them can help you navigate the dynamics in CEN/CENELEC and gradually strengthen your influence in the standards development process.

While standards are a critical stage in technical development, standardisation is not a silver bullet to solve socio-technical problems. Coupling standardisation alongside other forms of engagement can support civil society organisations to take a holistic view of how these technologies are being developed and determine how best to engage in technical standards.

1. Grasp technical knowledge and translate human rights concepts into technical language

This will help you navigate CEN/CENELEC and effectively influence the development of technical standards. Technical knowledge of the standard is essential to gain credibility in order to persuade a community dominated by engineers and technologists. By speaking in their language, you can ensure that your views will be heard. Furthermore, translating human rights concerns into technical concepts will strengthen the intervention. Rather than arguing abstractly for human rights guarantees, you can propose specific technical requirements for 'greater transparency and documentation requirements' for AI models or 'inclusion of discrimination in the risk taxonomy that models are mitigated against'.

2. Participate persistently to ensure successful outcomes

It is important for the technical community within CEN/CENELEC to consider you as a valuable collaborator. Standards are a long-term commitment and people working with you in the standardisation process want to ensure that they can depend on you throughout the lifecycle of the process. Persistent participation is essential for demonstrating commitment and gaining trust from allies, as standardisation is a long-term, consensus-driven process where influence comes from sustained engagement, rather than one-off interventions. However, this does not mean blind commitment

to the stated aims of a Working Group: consistent participation can also mean showing up regularly to voice principled dissent, challenge underlying assumptions, or advocate for alternative approaches. The key is demonstrating reliable engagement over time, whether as a supportive collaborator or as a consistent critical voice that others can depend on to raise important concerns.

3. Zoom out of technical standards to inform and contextualise broader political and economic trends

Deep engagement in standardisation processes generates invaluable intelligence about industry practices, technical architectures, and corporate strategies that extends far beyond individual standards. You can leverage this knowledge beyond the confines of CEN/CENELEC. For example, technical knowledge from standardisation work enhances competition efforts by revealing how standards can be weaponised to create barriers to entry. They can also be used to promote interoperability to genuinely open markets and increase the diversity of non-commercial participants, rather than simply creating a 'compliance theatre'. This ensures that your technical engagement serves strategic advocacy goals beyond the immediate standards context, maximising the impact of limited resources to contribute to debates about how to hold big tech accountable through competition and regulatory efforts.

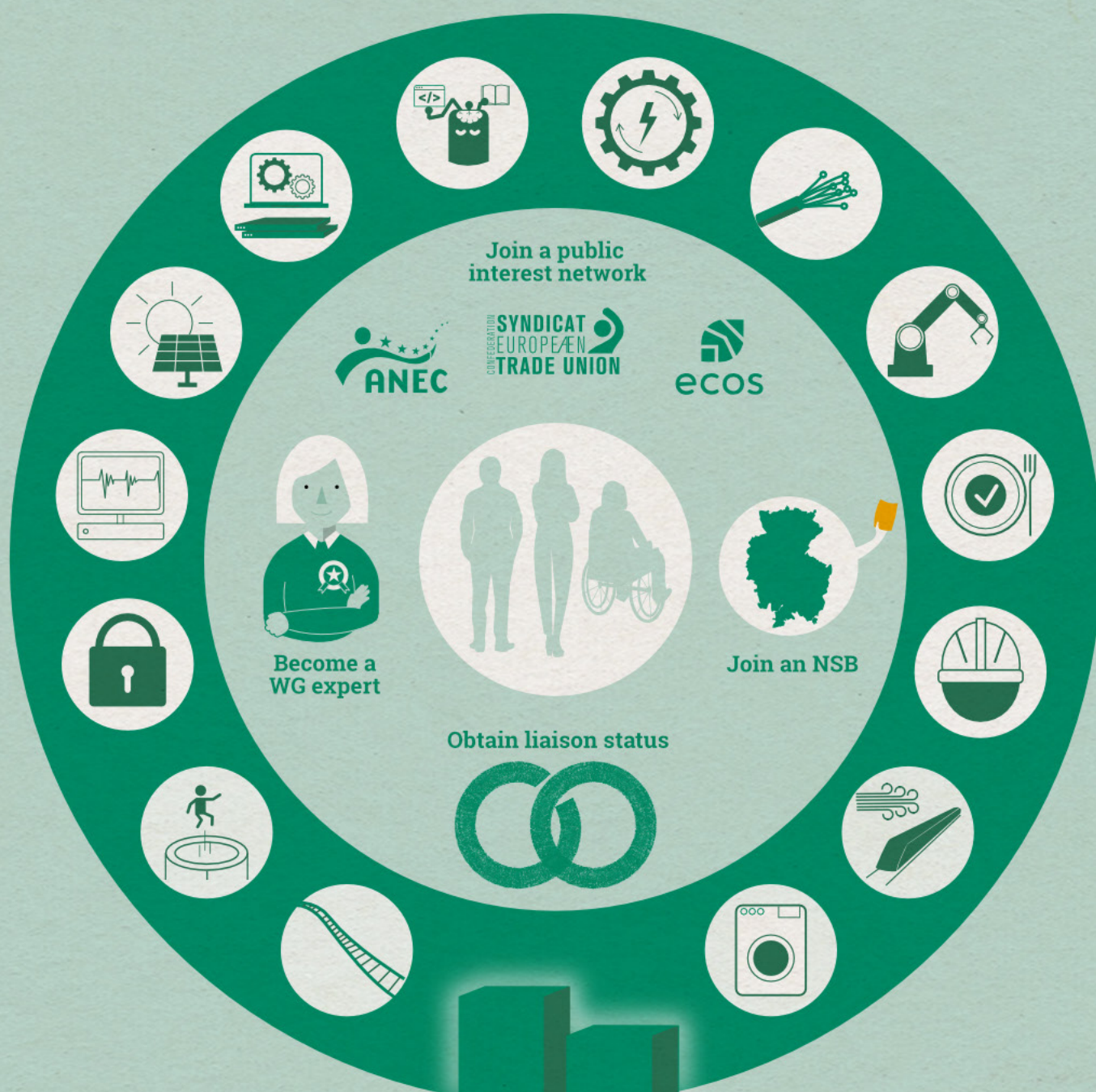
4. Continually question the role of technical standards

Civil society participation can inadvertently legitimise systems that cause harm, particularly when standards increase surveillance or discriminatory technologies. Each engagement requires careful assessment of whether your participation will meaningfully constrain harmful applications or simply rubber stamp systems that fall below international human rights norms. This may involve reassessing your tactics, such as combining strategic non-participation with external advocacy that challenges the legitimacy of a draft or process. This will require case-by-case decisions and close collaboration with other organisations and affected communities to understand and assess the potential impact of these standards.

Technical decisions are never merely technical – they are where power gets wired into our systems. Behind every algorithm, every data standard, and every risk metric lie choices about what – and who – matters, deciding in practice whose opportunities expand, whose freedoms shrink, and whose harms become acceptable.

The seemingly arcane world of technical standardisation is, in effect, a primary law-making site, turning political choices into mandatory defaults that can shape our societies for decades. If civil society isn't in the room, human rights and the public interest won't be the standard. **That is why civil society engagement is both urgent and non-negotiable, ensuring that digital technologies protect human rights and serve us all.**

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